

23STCV15597 23STCV15597

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Case Number: 23STCV15597 Hearing Date: July 9, 2026 Dept: 529

S.K., A MINOR, BY AND THROUGH HER

GUARDIAN AD LITEM, T.K., V. CITY OF LOS ANGELES, ET AL.

MOTION

FOR LEAVE TO AMEND THE CITY'S ANSWER TO PLAINTIFF'S COMPLAINT AND BIFURCATE TRIAL AND

Date

of Hearing: July

9, 2026 Trial

Date: January

25, 2027

Department: 529 Case No.: 23STCV15597

BACKGROUND

On July 5, 2023, Plaintiff S.K., a minor, by and through her Guardian ad Litem, T.K., an individual filed a complaint against Defendants City of Los Angeles, City of La Mirada, and Doe 1 for (1) Negligence, (2) Negligent Hiring, Supervision, Training and/or Retention, (3) Common Carrier Liability – Civil Code §2100 et seq., (4) Dangerous Condition of Public Property, (5) Negligence, (6) Negligent Hiring, Supervision, Training and/or Retention, (7) Common Carrier Liability – Civil Code §2100 et seq., (8) Dangerous Condition of Public Property, (9) Sexual Battery, (10) Battery, (11) Assault, (12) False Imprisonment, and (13) Negligence.

City of Los Angeles filed a Cross-Complaint against City of La Mirada on September 29, 2023 for (1) Indemnification, (2) Apportionment of Fault, and (3) Declaratory Relief. City of La Mirada filed a Cross-Complaint against City of Los Angeles for (1) Indemnification and (2) Apportionment of Fault.

On August 5, 2025, Plaintiff dismissed the third and fourth causes of action against Defendant City of Los Angeles.

[TENTATIVE]

RULING

I.

Defendant City of La Mirada's Motion for Leave to Amend the City's Answer to Plaintiff's Complaint and Bifurcate Trial is GRANTED IN PART.

II.

Defendant City of La Mirada's Motion to Compel Cross-Defendant City of Los Angeles' Further Responses to Special Interrogatories, Set One is GRANTED.

DISCUSSION

I.

DEFENDANT CITY OF LA MIRADA'S MOTION FOR LEAVE TO AMEND THE CITY'S ANSWER TO PLAINTIFF'S COMPLAINT AND BIFURCATE TRIAL

Defendant City of La Mirada moves this court for an order granting leave to file an amended answer to Plaintiff S.K., a minor, by and through her Guardian ad Litem, complaint to include a design immunity affirmative defense. The City of La Mirada also moves to bifurcate trial on the affirmative defense of design immunity.

Objections

In opposition, Plaintiff submits objections to the declaration of Michelle R. Prescott. The court OVERRULES objections 1 – 5.

Discussion

“A court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (CCP §473(a)(1).) The court’s discretion will usually be exercised liberally to permit amendments of the pleadings. (Nestle v. City of Santa Monica (1972) 6 Cal.3d 920, 939.) A complainant may obtain leave from the trial court to amend their pleading beyond the number of amendments allowed under Code of Civil Procedure section 472 (a) by filing a noticed motion. (CRC, Rule 3.1324.)

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The motion must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (CRC, Rule 3.1324(a).) The motion must also be accompanied by a declaration stating: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. (CRC, Rule 3.1324 (b).)

Code of Civil Procedure § 598 provides in pertinent part that, “[t]he court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order . . . that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof.” Similarly, CCP § 1048(b) provides in pertinent part that, “[t]he court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues.”

The court’s discretionary authority to sever claims and try them separately may also be employed to avoid undue prejudice to a party. (Stencel Aero Engineering Corp., v. Superior Court (1976) 56 Cal.App.3d 988.) Courts have inherent power to regulate the order of trial,

and therefore can entertain a motion to bifurcate at any time—even during the trial itself. (McLellan v. McLellan (1972) 23 Cal.App.3d 343, 353.)

City of La Mirada argues when Defendant filed its answer to the complaint on September 20, 2023, the City of La Mirada inadvertently failed to explicitly assert the affirmative defense of Design Immunity in its answer. Upon substitution of counsel, Defendant sought a stipulation from Plaintiff's counsel and counsel for Defendant the City of Los Angeles for the filing of an Amended Answer. Plaintiff refused to stipulate to the amendment or bifurcation and City of Los Angeles only agreed to stipulate to the amended answer. City of La Mirada contends leave is appropriate as the motion is timely, Plaintiffs will not be prejudiced by the proposed amendment, and design immunity is a viable affirmative defense. City of La Mirada also seeks bifurcation of the affirmative defense as applicability of design immunity is an issue of law to be decided by the court, rather than by the jury or judge sitting as a trier of fact.

The City of Los Angeles filed a notice of non-opposition to the motion. Plaintiffs, in opposition, argue Defendants have failed to state when it was discovered the facts necessitating amendment or articulate a credible reason for its unreasonable delay in bringing this motion as well as Plaintiffs will suffer prejudice if amendment is allowed. Plaintiffs maintain courts are much more critical and less inclined to grant leave when a defendant seeks to amend its answer after an unexplained delay, where there is a lack of diligence, or prejudice to the other party. (Permalab-Metalab Equipment Corp., v. Maryland Cas. Co. (1975) 25 Cal.App.3d 465, 472.) Plaintiffs further argue even if amendment is allowed, bifurcation should be denied because the motion is premature, design immunity defense will not dispose of the entire case, it will not promote the ends of justice, and there is no prejudice to Defendant in having the matter tried as a whole.

First, the court finds the motion sufficiently complies with Rules of Court, Rule 3.1324. Defendant provides counsel discovered the need to amend when they were going over the answer to prepare for trial. (Prescott Decl. ¶¶11, 12.) The declaration also provides the amendment is necessary and proper because “the proposed amendments are necessary and proper because the evidence discovered in this case demonstrates that the City of La Mirada was responsible for the plan, design and/or construction of the waterpark known as SPLASH! In addition, the plan and/or design was approved in advance by the legislative body of the City of La Mirada.” (Prescott Decl. ¶10.) The court also finds

Plaintiffs will not be prejudiced by the amendment. Trial is not set until January 25, 2027. Plaintiff only speculates “protracted discovery” will be needed. Even if the amendment required further discovery, it would not deny Plaintiffs a full opportunity to present evidence at trial. Moreover, while it is true that courts are critical of proposed amendments to answers where there has been a long unexplained delay or a lack of diligence, as noted above, the court finds Defendant has sufficiently provided for the delay.

Regarding bifurcation, the court agrees bifurcation at this time is premature and would not dispose of the entire case. As noted by Plaintiffs, design immunity bars only design caused claims. (See *Mozzetti v. City of Brisbane* (1977) 67 Cal.App.3d 565.) Accordingly, it does not immunize a public entity from liability caused by negligence independent of the design. Moreover, Defendant still has not shown bifurcation will serve judicial economy.

Accordingly, Defendant
City of La Mirada's Motion for Leave to Amend the City's Answer to Plaintiff's Complaint and Bifurcate Trial is GRANTED IN PART.

II.

MOTION TO COMPEL CROSS-DEFENDANT CITY OF LOS ANGELES' FURTHER
RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

Defendant City of La Mirada moves this court for an order compelling disclosure of the address and contact information of A.J., the alleged perpetrator in this case. City of La Mirada makes this motion on the grounds (1) the requested information is directly relevant to the claims and defenses in this action; (2) the information is reasonably calculated to lead to the discovery of admissible evidence; (3) the witness is a minor who participated in a summer camp program operated by Defendant City of Los Angeles; and (4) good cause exists to permit the disclosure subject to appropriate protective conditions.

Code of Civil Procedure section 2017.010 provides any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action. “The disclosure of the names and addresses of potential witnesses is a routine and essential part of pretrial discovery.’ [Citation.]” (*Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242,

City of La Mirada argues Plaintiffs claims against the City of La Mirada are directly from the alleged conduct of A.J. The issues in this case include what occurred between the two minors; the duration and context of their interaction; the presence or absence of supervision; and whether the incident was foreseeable. As a result, A.J.'s testimony is therefore directly relevant and essential to the City's defense. The City of La Mirada seeks only A.J.'s current address and contact information for the purposes of noticing and conducting a deposition and proposes the following safeguards: (1) Disclosure limited to counsel of record; (2) "Confidential, Attorneys' Eyes Only" designation; (3) Use solely for the purposes of this litigation; (4) No dissemination beyond counsel and retained experts; (5) Return or destruction at the conclusion of litigation; (6) Deposition limited to a single session; and (7) Attendance of a parent, guardian, or guardian ad litem.

City of Los Angeles filed a limited opposition on the grounds absent a court order or permission from A.J.'s parent to disclose this information, the City of Los Angeles is legally obligated to assert privacy rights on behalf of the minor camper.

The court GRANTS the motion to compel further. The court finds the privacy concerns can be sufficiently addressed under the proposed safeguards. In order for the City to meaningfully defend itself, it must have access to the only direct witness.

Based on the foregoing, Defendant City of La Mirada's Motion to Compel Cross-Defendant City of Los Angeles' Further Responses to Special Interrogatories, Set One is GRANTED.